

STATE OF NEW YORK

5010--A

2025-2026 Regular Sessions

IN SENATE

February 18, 2025

Introduced by Sen. HARCKHAM -- read twice and ordered printed, and when printed to be committed to the Committee on Transportation -- recommitted to the Committee on Transportation in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the transportation law, in relation to creating a road salt applicator training program and requires the training of state agencies and state contractors which use road salt

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. The transportation law is amended by adding a new section 23 to read as follows:

§ 23. Road salt applicator training program. 1. (a) The commissioner, in consultation with the commissioner of environmental conservation, shall establish a set of comprehensive road salt reduction policies and standards and use such standards to design a road salt applicator training program to ensure applicators can meet the standards of such road salt applicator training program including, but not limited to:

(i) Teaching the science of road salt, granular road salt alternatives and road salt pollution;

(ii) Training materials regarding the environmental and human health impacts of road salt;

(iii) Best practices for the application of sodium chloride to roads, parking lots, and sidewalks, such as those specifically stated in the Adirondack Road Salt Task Force report;

(iv) Use of state of the art equipment for snow and ice removal;

(v) Use of monitoring technologies for annual reporting of road salt use by location;

(vi) A plan of action for the reduction or elimination of sodium chloride pollution in environmentally sensitive areas;

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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1 (vii) A verification process for assuring best practices are being
2 implemented and shall continue to be implemented;

3 (viii) The use of road salt alternatives; and

4 (ix) A process for certification of trained and approved applicators,
5 including particular locations for such in-person training program, and
6 a time period within which to complete continuing training requirements.

7 (b) In creating the road salt applicator training program, the commis-
8 sioner shall use best efforts to consult with current programs and
9 research being conducted in the state such as those undertaken by the
10 Fund for Lake George, the Lake George Association, ADK Action, the Cary
11 Institute of Ecosystem Studies, and Cornell University.

12 (c) In creating the road salt application training program, consider-
13 ation should be given to the ability to open the training to all public
14 applicators.

15 2. The commissioner shall prepare and submit to the the governor, the
16 temporary president of the senate, the speaker of the assembly, the
17 chair of the senate committee on transportation, and the chair of the
18 assembly committee on transportation, on or before December first, two
19 thousand twenty-six, a report containing the road salt applicator
20 program findings and recommendations that include, but are not limited
21 to:

22 (a) Recommendations for conducting the training program by agency
23 staff or a private contractor;

24 (b) Findings regarding the appropriateness of limited liability relief
25 for certified applicators;

26 (c) Recommendations regarding funding options or assistance to locali-
27 ties for purchase of state of the art equipment;

28 (d) Findings, using existing data and information, regarding locations
29 in the state where road salt contamination may be a threat to the envi-
30 ronment, property or human health;

31 (e) Findings regarding the use of similar programs in other states,
32 such as Rhode Island and Minnesota;

33 (f) Recommendations regarding a timeline for implementation of the
34 road salt applicator training program; and

35 (g) Findings regarding costs associated with conducting such program.

36 3. Effective January first, two thousand twenty-seven, the department,
37 every state agency and state contractor which uses road salt shall use
38 the training materials established in subdivision one of this section to
39 train and inform employees on the best practices of using such materi-
40 als.

41 § 2. This act shall take effect immediately.